

1. Questions for the GAL

1. Did you request or attempt to obtain the Holly's House interview recording or transcript involving Madison?
2. If you did not obtain the Holly's House recording, what reason were you given?
3. Did you speak directly with Holly's House about whether a second interview was needed or recommended?
4. Did you contact law enforcement or child-protection authorities in Louisiana regarding any reports involving Joseph or the children?
5. Did you obtain records from the children's Indiana pediatrician, Dr. Jill Smith?
6. Did you verify whether Joseph obtained Medicaid benefits for the children?
7. Did you verify whether Joseph enrolled the children in school or placed them on a school waitlist?
8. Did you verify whether Joseph had secured a pediatrician for the children after relocating?
9. Did you verify whether Joseph owned or rented the mobile home where he and the children were living?
10. Did you review the full DCS file, including all reports, findings, and assessments?
11. Did you review any law-enforcement reports from Indiana, Louisiana, or any other jurisdiction?
12. Did you interview Sara Eslinger?
13. Did you rely on Sara's interrogatory answers? If so, why were they not discussed in greater detail?
14. How many times did you speak with the children?
15. How long was the virtual interview or observation of the children?
16. Were Joseph or any other adults present during the children's virtual interview?
17. What questions were asked of the children?
18. Did you consider the children's ages, developmental delays, or Leo's autism when evaluating their ability to respond?
19. Did you investigate reports that the children were left unsupervised on a balcony?
20. Did you investigate reports that maintenance had to open Joseph's apartment door while the children were inside?
21. Did you investigate allegations that Joseph used charging cords to hit Sara?
22. Did you consider whether similar alleged conduct could be relevant to physical-abuse concerns involving Leo?
23. Did you ask Kristi or Sherry about all concerns they had regarding the children's safety?
24. Did you verify Joseph's reported move date from Indiana?
25. Did you investigate whether a Louisiana police report existed shortly after Joseph relocated?
26. Did you investigate Joseph's statement regarding his father and sister allegedly having a sexual relationship?
27. Did you consider whether Joseph's alleged history of false statements affected his credibility?

28. Why were Kristi's dismissed check-deception charges included in the report?
 29. Did you consider whether dismissed charges had any relevance to Kristi's ability to care for the children?
 30. Did you consider trauma-related reasons why Madison may have difficulty giving exact dates?
 31. Did you consider that delayed or inconsistent disclosures can occur in abuse cases?
 32. What weight did you give to DCS substantiating the sexual-abuse allegation against Joseph?
 33. What weight did you give to the fact that no criminal charges had been filed?
 34. Did you distinguish between lack of criminal charges and lack of safety concerns?
 35. Did you consider whether additional investigation was needed before recommending denial of guardianship?
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2. Numbered Factual Statements With Source / Exhibit

1. The GAL report states that the GAL spoke with Joseph, Sherry, Kristi, Madison, and Deputy Prosecutor David Whitehead.
Source: GAL Report, p. 1.
2. The GAL report states that the GAL reviewed Vanderburgh County DCS records, text messages, photographs, Sara's interrogatories, and Medicaid benefits.
Source: GAL Report, p. 1.
3. The GAL report states that Joseph relocated out of Indiana on April 24, 2023.
Source: GAL Report, p. 3.
Needed Exhibit if disputed: Louisiana police report, lease records, travel records, witness testimony.
4. The GAL report states Joseph lived in a three-bedroom, two-bathroom trailer and claimed to own the mobile home.
Source: GAL Report, p. 3.
Needed Exhibit if disputed: title, lease, property records, landlord statement.
5. The GAL report states Joseph obtained Medicaid benefits, placed the children on a school waitlist, and was working to obtain a pediatrician.
Source: GAL Report, p. 3.
Needed Exhibit: Medicaid confirmation, school records, pediatrician records.
6. The GAL report states the children previously saw Dr. Jill Smith in Indiana.
Source: GAL Report, p. 3.
Needed Exhibit: pediatric medical records from Dr. Jill Smith / Ascension St. Vincent.

7. The GAL report states Joseph alleged his father and sister had a sexual relationship.
Source: GAL Report, p. 4.
Needed Exhibit if challenged: testimony from alleged parties, text messages, investigative records.
8. The GAL report states Kristi reported concerns about Joseph's sexual abuse allegations involving Madison and Scott/Chloe.
Source: GAL Report, pp. 5–6.
9. The GAL report states Kristi believed Joseph may be abusing the children.
Source: GAL Report, p. 5.
10. The GAL report states Kristi reported Joseph physically abused Sara with a phone cord.
Source: GAL Report, p. 6.
Needed Exhibit: Kristi testimony, Sara testimony, photographs, medical records, police/DCS reports.
11. The GAL report states Sherry reported Joseph failed to take the children to annual checkups with Dr. Jill Smith.
Source: GAL Report, p. 8.
Needed Exhibit: medical records.
12. The GAL report states Sherry reported the children were unsupervised on a third-floor balcony in January.
Source: GAL Report, p. 8.
Needed Exhibit: DCS report, neighbor testimony, apartment records, police report.
13. The GAL report states Jonah was placed with Sherry by the U.S. Marshals after birth.
Source: GAL Report, p. 8.
Needed Exhibit: U.S. Marshals record, hospital record, custody-placement record.
14. The GAL report states Sherry alleged Joseph wanted the children for child support and a greater tax return.
Source: GAL Report, p. 8.
Needed Exhibit: witness testimony, text messages, recordings.
15. The GAL report states Sherry and Kristi had concerns regarding Diana / Laura Diana Lopez and whether the person identified as Diana was the same person they met.
Source: GAL Report, pp. 6, 8.
16. The GAL report states the GAL did not have access to the Holly's House video.
Source: GAL Report, p. 9.

17. The GAL report states Detective Deig reported Madison canceled an initial Holly's House interview.
Source: GAL Report, p. 9.
18. The GAL report states Holly's House and DCS did not want to re-interview Madison.
Source: GAL Report, p. 9.
19. The GAL report states Madison participated in a Holly's House interview and DCS substantiated a report against Joseph based on that interview.
Source: GAL Report, pp. 11–12.
20. The GAL report states no criminal charges had been filed against Joseph at the time of the report.
Source: GAL Report, pp. 5, 10, 13.
21. The GAL report states DCS received fourteen reports from March 2019 to March 2023, including eleven reports against Joseph between October 2022 and March 2023.
Source: GAL Report, pp. 11–12.
22. The GAL report states law enforcement and medical providers reported no concerns for the children in Joseph's care, while noting possible developmental delays.
Source: GAL Report, p. 12.
23. The GAL report states the DCS sexual-abuse report was substantiated against Joseph.
Source: GAL Report, p. 12.
24. The GAL report states the GAL recommended that guardianship be denied.
Source: GAL Report, p. 13.
25. The claim that Joseph relocated on April 2, not April 24, is not established by the GAL report.
Needed Exhibit: Louisiana police report, lease, travel records, witness testimony.
26. The claim that a Louisiana abuse report was filed on April 4 is not established by the GAL report.
Needed Exhibit: Louisiana police report.
27. The claim that Holly's House lost the tape is not established by the GAL report.
Needed Exhibit: Holly's House correspondence, subpoena response, testimony.
28. The claim that Leo later had over 50 charging-cord marks is not established by the GAL report.
Needed Exhibit: autopsy report, photographs, medical records, law-enforcement

report.

3. Legal Argument Section

The GAL report should be given limited weight because several material safety concerns appear either unresolved, insufficiently investigated, or dependent on unverified information.

First, the report acknowledges serious allegations of sexual abuse against Joseph, including a substantiated DCS finding arising from the Holly's House interview. Although no criminal charges had been filed, the absence of charges does not necessarily resolve the child-safety question before the court. The court's concern is the best interests and safety of the children, not solely whether a prosecutor elected to file criminal charges.

Second, the report relies in part on Joseph's representations regarding housing, Medicaid, schooling, pediatric care, and relocation. If those matters were not independently verified through records, the report may not provide a reliable basis for determining the children's stability and safety.

Third, the report gives weight to the GAL's virtual observation of the children, but it does not clearly state the length of the interview, the questions asked, whether Joseph or other adults were present, or whether the children's ages and developmental limitations affected their ability to communicate concerns.

Fourth, several allegations raised by Sherry and Kristi involve specific safety issues, including lack of supervision, medical neglect, possible physical abuse, and concerning statements by Joseph. These issues should be evaluated through records and witness testimony rather than discounted merely because other reports were unsubstantiated.

Fifth, any credibility concerns should be applied consistently. If the report considers concerns about Sherry's or Kristi's credibility, the court should also consider whether Joseph's alleged inconsistent statements, alleged false statements, and disputed claims affect his credibility.

For these reasons, the court should require clarification from the GAL and supporting records before relying on the report's recommendation. The requested relief is that the GAL be questioned regarding the scope of her investigation, what records were reviewed, what records were not obtained, and what facts were independently verified before the court determines guardianship, custody, or parenting-time issues.